

1 SENATE BILL NO. 286
2 INTRODUCED BY D. EMRICH

3
4 A BILL FOR AN ACT ENTITLED: "AN ACT CLARIFYING THE PRECEDENTIAL VALUE OF CASELAW
5 INTERPRETING A STATUTE IN THE EVENT OF SUBSEQUENT LEGISLATIVE ACTION ON THE
6 INTERPRETED STATUTORY PROVISIONS."

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8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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10 NEW SECTION. **Section 1. Caselaw -- applicability.** The precedential value of a court decision
11 interpreting a statute yields to subsequent legislative action on the interpreted statutory provisions.

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13 NEW SECTION. **Section 2. Codification instruction.** [Section 1] is intended to be codified as an
14 integral part of Title 1, chapter 1, part 1, and the provisions of Title 1, chapter 1, part 1, apply to [section 1].

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